

5	Ragland vs. Wells Fargo Bank, N.A. 30-2023-01346326	<u>Demurrer</u> Defendant Onity Group, Inc.'s Demurrer to First Amended Complaint is CONTINUED to December 22, 2026 at 9:00 a.m. in Department N15. In light of Plaintiff Sawyer Ragland's Notice of Urgent Cardiac Procedure, Medical Unavailability, Affected Proceedings, and Preservation of Rights filed September 2, 2026 (ROA #339), the court will continue the hearing on this matter. The court clerk shall give notice of this ruling.
6	Kim vs. Williams 30-2023-01317262	<u>Motion to Quash</u> Defendant Securitas Security Services USA, Inc.'s Motion to Quash Deposition Notice of Nonparty Consultant Mark Mooring is GRANTED in part and DENIED in part. Defendant Securitas Security Services USA, Inc.'s is ORDERED to produce Mark Mooring for deposition at a mutually agreeable date and time, and in the manner specified in the Notice of Deposition of Mark Mooring, no later than 10 days after service of the notice of ruling. The deposition of Mark Mooring shall be limited in scope to questions regarding the foundational basis of any of the opinions and analyses that Mark Mooring has provided in support of any motions for summary judgment or summary adjudication. <u>Pending Motion</u> Defendant Securitas Security Services USA, Inc. (Defendant Securitas) moves to quash the Notice of Deposition of Mark Mooring (Notice of Deposition). <u>Standard to Take and Quash Depositions</u> Any party may obtain discovery by taking in California the oral deposition of any person, including any party to the action. (See Code Civ. Proc., § 2025.010.) A party desiring to take an oral deposition of a person who is under the jurisdiction of the court shall give written notice of the deposition. (See Code Civ. Proc., § 2025.220, subd. (a).)

		In addition, A nonparty may be required to appear to give oral testimony in a deposition and/or to produce documents by serving the nonparty with a subpoena with sufficient time in advance to allow the nonparty a reasonable opportunity to travel to the place of deposition and/or to locate and produce any designated documents. (See Civil Procedure Code, §§ 1985, 1987, 2020.220.) The Civil Procedure Code provides that: If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things . . . at the taking of a deposition, the court, upon motion reasonably made . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. (Code Civ. Proc., § 1987.1, subd. (a).) In general, the burden of establishing good cause for issuance of an order denying or limiting discovery falls on the shoulders of the party seeking the protection, who must make this showing by a preponderance of the evidence. (<i>Coriell v. Superior Court</i> (1974) 39 Cal.App.3d 487, 492; <i>Stadish v. Superior Court</i> (1999) 71 Cal.App.4th 1130, 1145.) <u>Expert Witness Depositions</u> At any time after a trial date has been set, any party may demand the mutual and simultaneous exchange by all parties of a list containing the name and address of any expert witness the other parties expects to offer in evidence at the trial. (See Code Civ. Proc., § 2034.210, subd. (a).) If a designated expert witness is an employee of the designating party or has been retained by the designating party, that party must also include a declaration stating the qualifications, general substance of the testimony, and the hourly and daily of the expert witness, among other things. (See Code Civ. Proc., § 2034.210, subd. (b); Code Civ. Proc., § 2034.260, subd. (c).) The above demand shall be made no later than the 10th day after the initial trial date has been set or
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		70 days before that trial date, whichever is closer to the trial date. (See Code Civ. Proc., § 2034.220.) In addition, the date specified for the exchange of expert witness information "shall be 50 days before the initial trial date, or 20 days after service of the demand, whichever is closer to the trial date, unless the court, on motion and a showing of good cause, orders an earlier or later date of exchange." (Code Civ. Proc., § 2034.230, subd. (b).) Upon receiving from another party the list designating that party's expert witnesses, a party may take the deposition of any person on the list. (See Code Civ. Proc., § 2034.280, subd. (a).) The party designating an expert witness must make that expert witness available for deposition upon service of a proper notice of deposition and payment of the expert's fees by the deposing party or the party is prohibited from calling that expert witness at trial. (See Code Civ. Proc., §§ 2034.280, subd. (c), 2034.300, subd. (d), 2034.410, 2034.450.) In addition, an expert witness whose deposition has been noticed must produce any materials or category of materials called for by the deposition notice, including electronically stored for information, no later than three business days before his or her deposition. (Code Civ. Proc., § 2034.415.) Defendant Securitas argues that the Notice of Deposition should be quashed because it is premature. At the time the Notice of Deposition was served, no demand for the exchange of expert witnesses had been made and no expert witnesses had been designated by the parties, including Mark Mooring. However, in <i>St. Mary Medical Center v. Superior Court</i>, the Court of Appeal held that a party in a summary judgment proceeding should be allowed to depose an expert who supplies a declaration or affidavit in support of or in opposition to a summary judgment or summary adjudication when there is a legitimate question regarding the foundation of the opinion of the expert. (<i>St. Mary Medical Center v. Superior Court</i> (1996) 50 Cal.App.4th 1531, 1538-1539.) As the Court of Appeal explained:
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		[W]here a party presents evidence that raises a significant question relating to the foundation of an expert's opinion filed in support of or in opposition to a motion for summary judgment or summary adjudication, a deposition limited to that subject should be allowed. (<i>Id.</i> at p. 1534.) The Court in <i>St. Mary Medical Center v. Superior Court</i> reasoned that “it would defeat the purpose of the summary procedure were we to recognize an absolute right of a party involved in the process to depose any person who provides evidence in support of or opposition to the proceeding.” (<i>Id.</i> at p. 1538.) However, in order for a party to request such a deposition, “there must be objective facts presented which create a significant question regarding the validity of the affidavit or declaration which, if successfully pursued, will impeach the foundational basis of the affidavit or declaration in question.” (<i>Id.</i> at pp. 1540-1541.) Whether to compel such a deposition falls within the sound discretion of the trial court. (<i>Id.</i> at p. 1540.) Here, Defendant Securitas presented the declaration of Mark Mooring in support of its motion for summary judgment, or in the alternative summary adjudication. Therefore, Plaintiffs may seek to depose Mooring pursuant to <i>St. Mary Medical Center v. Superior Court</i>. Defendant Securitas points out that its motion for summary judgment has been heard and ruled upon. This is true. However, its Co-Defendants, Greenlaw Property Management and 73 LPCP6 (collectively, Defendants Greenlaw and 73 LPCP6), have also filed a motion for summary judgment, or in the alternative, summary adjudication that also relies upon the declaration of Mooring. That motion will not be heard for another month and Plaintiff’s deadline to file and serve an opposition, or to request a continuance of the hearing in order to obtain discovery, has not
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	passed. (See Code Civ. Proc., § 437c, subd. (b)(2), (h).) Defendant Securitas contends that Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, is identical to the motion brought by Defendant Securitas and that "there is every reason to expect Plaintiffs will make the same arguments as they did in opposing Securitas' MSJ, including challenging the bases for Mr. Mooring's opinions." (Reply to Pltf.'s Opp'n to Mot. to Quash Deposition Notice of Nonparty Consultant Mark Mooring (Reply) at p. 2.) However, the fact that Plaintiffs can and will make the same arguments does not mean that they are not entitled to obtain discovery in order to develop <i>additional</i> arguments that they were not able to make in opposition to the motion by Defendant Securitas. To the extent that Defendant Securitas contends that Plaintiffs do not need those additional arguments because they have already defeated Defendant Securitas' motion for summary judgment, or in the alternative, summary adjudication, the court cannot prejudge Defendants Greenlaw's and 73 LPCP6's motion. It would be inequitable to allow Defendant Securitas to quash the Notice of Deposition on the basis that Plaintiffs do not need the deposition to defeat Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, while at the same time allowing Defendants Greenlaw and 73 LPCP6 to argue their motion. If Defendants wish to avoid the need for the deposition of Mooring, they may withdraw the Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, or at the least, withdraw the declaration of Mooring. Defendant Securitas also argues that <i>St. Mary Medical Center v. Superior Court</i> is distinguishable because it involved an expert witness' declaration that was offered to defeat a motion for summary judgment.
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	This argument is without merit as the Court of Appeal in that case made it clear that its holding applied to any expert witness whose opinion had been "filed in support of or in opposition to a motion for summary judgment or summary adjudication." (<i>St. Mary Medical Center v. Superior Court, supra</i>, 50 Cal.App.4th at p. 1534.) Defendant Securitas next claims that Plaintiffs have not submitted evidence that raises a significant question relating to the foundation of Mooring's opinion. This argument also is incorrect. With respect to Defendant Securitas' motion for summary judgment, or in the alternative, summary adjudication, Plaintiffs presented evidence and argument that Mooring's opinion lacked foundation and the court credited those arguments. (See ROA #219 at pp. 2-3.) <u>No Subpoena Served</u> Defendant Securitas further contends that the Notice of Deposition is improper because Mooring is a nonparty who may only be deposed by serving a subpoena, rather than a notice of deposition. Normally, an expert witness may be deposed by serving a notice of deposition, but only after the expert witness has been designated by a party. (See Code Civ. Proc., § 2034.280, subd. (a).) However, <i>St. Mary Medical Center v. Superior Court</i> created the right to depose based upon a party's use of an expert witness' declaration to support or oppose a motion for summary judgment, but did not answer the question of whether a party submission of an expert witness' declaration "designates" that expert witness so that the opposing party may serve a notice of deposition. The court need not answer that question in this case because Defendant Securitas has not pointed to any harm it has suffered as a result of Plaintiffs service of a notice of deposition rather than a subpoena. In fact, Defendant Securitas does not indicate any information that would have been contained in a subpoena that was not contained in the Notice of Deposition here.
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		Therefore, the court rejects the argument that the Notice of Deposition must be quashed because a subpoena, rather than a notice of deposition, should have been served. <u>Abuse of the Discovery Process</u> Defendant Securitas also asserts that the Notice of Deposition is an abuse of the discovery process and was served in bad faith. Defendant Securitas claims that Plaintiffs have long known about the Mooring declaration yet waited almost 6 months to serve the Notice of Deposition. The problem with this argument is that Defendant Securitas fails to point to any advantage that Plaintiffs gained or any disadvantage that was inflicted on Defendants by Plaintiffs' delay in serving the Notice of Deposition. If anything, the delay hurt Plaintiffs as they were unable to take the deposition of Mooring before they filed their opposition to Defendant Securitas' motion for summary judgment, or in the alternative, summary adjudication, and before the court heard and decided that motion. To the extent that the taking of the deposition may delay the hearing on Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication, Plaintiffs served the Notice of Deposition on May 1, 2026, two months <i>before</i> Defendants Greenlaw and 73 LPCP6 filed their motion. Thus, the Notice of Deposition could not have been a bad faith effort to delay the hearing on the Defendants Greenlaw's and 73 LPCP6's motion for summary judgment or in the alternative, summary adjudication. In any case, a delay in hearing Defendants Greenlaw's and 73 LPCP6's motion in order to obtain further discovery is specifically allowed by Civil Procedure Section 437c(h). That provision states that: If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be
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		presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. (Code Civ. Proc., § 437c, subd. (h).) Thus, the court rejects the argument that the Notice of Deposition was served in bad faith. (fn.1) (fn.1) Defendant Securitas also argues that the hearing on any motion for summary judgment should not be continued on the basis of the Notice of Deposition and Section 437c. This argument is premature as no such request has been made. <u>Attorney Work-Product Doctrine and Scope of Deposition</u> Defendant Securitas argues that all of Mooring's opinions, analyses, and communications are protected from disclosure by the attorney work-product doctrine. However, Defendant Securitas fails to explain its reasoning or provide any authority for the proposition that it may submit the opinions and analyses of its expert witness in support of a motion for summary judgment, or in the alternative, summary adjudication, and at the same time, shield itself from discovery regarding those opinions and analyses. At a minimum, such a contention would run contrary to the ruling in <i>St. Mary Medical Center v. Superior Court</i>, in which the Court of Appeal held that a party should be allowed to depose the expert witness on the foundation of an expert's opinion and analyses. At the same time, it is true, as Defendant Securitas argues, that the Notice of Deposition is not limited to the subject of the foundation of Mooring's opinion and analyses in his declaration. Therefore, to the extent that the Notice of Deposition seeks to question Mooring about subjects other than the foundation of his opinion and analysis in his declaration, the court will grant the motion.
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		Furthermore, this ruling is made without prejudice to any party's right to expert discovery as set forth in Civil Procedure Code sections 2034.210, <i>et seq.</i> Plaintiffs shall give notice of this ruling.
7	Nguyen vs. Nguyen 30-2025-01516682	<u>Demurrer</u> Cross-Defendant Giac Nguyen's Demurrer to Cross-Complainant's Cross-Complaint is SUSTAINED with 15 days leave to amend as to the 2nd, 3rd, and 5th Causes of Action, and OVERRULED as to the 1st and 4th Causes of Action. If Cross-Complainants Quynh Nguyen, Quy Nguyen, and Hanh Vu do not amend the Cross-Complaint within the period of time stated above, Cross-Defendant Giac Nguyen shall file an answer or other pleading in response to the remaining causes of action of the Cross-Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Cross-Defendant Giac Nguyen demurs to the 1st through 5th Causes of Action of the Cross-Complaint filed by Cross-Complainants Quynh Nguyen, Quy Nguyen, and Hanh Vu. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they